

The Medical Termination Of Pregnancy Rules, 1975

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[The Medical Termination Of Pregnancy Rules, 1975](#)

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[In exercise of the powers conferred by section 6 of the Medical Termination of Pregnancy Act, 1971 \(](#)

[34 of 1971](#)

[\), the Central Government hereby makes the following rules, namely:--](#)

[1.](#)

[Short title and commencement .-\(1\) These rules may be called The Medical Termination of Pregnancy Rules, 1975.](#)

[\(2\)](#)

[They shall come into force on the date of their publication in the Official Gazette.](#)

2.

Definitions .-In these rules, unless the context otherwise requires,--

(a)

"Act" means the Medical Termination of Pregnancy Act, 1971 (34 of 1971

);

(b)

"Chief Medical Officer of the District" means the Chief Medical Officer of a District, by whatever name called;

(c)

"Form" means a form appended to these rules;

(d)

"owner", in relation to a place, means any person who is the administrative head or otherwise responsible for the working or maintenance of such hospital or clinic, by whatever name called;

(e)

"place" means such building, tent, vehicle or vessel, or part thereof, as is used for the establishment or maintenance therein of a hospital or clinic which is used, or intended to be used, for the termination of any pregnancy;

(f)

"section" means a section of the Act.

3.

Experience or training, etc .-For the purpose of clause (d) of section 2, a registered medical practitioner shall have one or more of the following experience or training in gynaecology and obstetrics, namely:--

(a)

in the case of a medical practitioner who was registered in a State Medical Register immediately before the commencement of the Act, experience in the practice of gynaecology and obstetrics for a period of not less than three years;

(b)

in the case of a medical practitioner who was registered in a State Medical Register on or after the date of the commencement.

(i)

if he has completed six months of house surgency in gynaecology and obstetrics; or

(ii)

where he has not done any such house surgery, if he had experience at any hospital for a period of not less than one year in the practice of obstetrics and gynaecology; or

(iii)

if he has assisted a registered medical practitioner in the performance of twenty-five cases of medical termination of pregnancy in a hospital established or maintained, or a training institute approved for this purpose, by the Government;

(c)

in the case of a medical practitioner who has been registered in a State Medical Register and who holds a postgraduate degree or diploma in gynaecology and obstetrics, the experience or training gained during the course of such degree or diploma.

4.

Approval of a place .-(1) No place shall be approved under clause (b) of section 4,--

(i)

unless the Government is satisfied that termination of pregnancies may be done therein under safe and hygienic conditions; and

(ii)

unless the following facilities are provided therein, namely:--

(a)

an operation table and instruments for performing abdominal or gynaecological surgery;

(b)

anaesthetic equipment, resuscitation equipment and sterilization equipment;

(c)
drugs and parenteral fluids for emergency use.

(2)
Every application for the approval of a place shall be in Form A and shall be addressed to the Chief Medical Officer of the District;

(3)
On receipt of an application referred to in sub-rule (2), the Chief Medical Officer of the District shall verify or enquire any information contained in any such application or inspect any such place with a view to satisfy himself that the facilities referred to in sub-rule (1) are provided therein, and that termination of pregnancies may be made therein under safe and hygienic conditions.

(4)
Every owner of the place which is inspected by the Chief Medical Officer of the District shall afford all reasonable facilities for the inspection of the place.

(5)
The Chief Medical Officer of the District may, if he is satisfied after such verification, enquiry or inspection, as may be considered necessary, that termination of pregnancies may be done under safe and hygienic conditions, at the place, recommend the approval of such place to the Government.

(6)
The Government may after considering the application and the recommendations of the Chief Medical Officer of the District approve such place and issue a certificate of approval in Form B.

(7)
The certificate of approval issued by the Government shall be conspicuously displayed at the place to be easily visible to persons visiting the place.

5.
Inspection of a place .-(1) A place approved under rule 4 may be inspected by the Chief Medical Officer of the District, as often as may be necessary with a view to verify whether termination of pregnancies is being done therein under safe and hygienic conditions.

(2)
If the Chief Medical Officer has reason to believe that there has been death of, or injury to, a pregnant woman at the place or that termination of pregnancies is not being done at the place under safe and hygienic conditions, he may call for any information or may seize any article, medicine, ampule, admission register or other document, maintained, kept found at the place.

(3)
The provisions of the Code of Criminal Procedure, 1973 (2 of 1974), relating to seizure shall, so far as may be, apply to seizures made under sub--rule (2).

6.
Cancellation or suspension of certificate of approval .-(1) If, after inspection of any place approved under rule 4, the Chief Medical Officer of the District is satisfied that the facilities specified in rule 4 are not being properly maintained therein and the termination of pregnancy at such place cannot be made under safe and hygienic conditions, he shall make a report of the fact to the Government giving the detail of the deficiencies or defects found at the place. On receipt of such report the Government may after giving the owner of the place a reasonable port unity of being heard either cancel the certificate of approval or suspend the same for such period as it may think fit.

(2)
Where a certificate issued under rule 4 is cancelled or suspended, the owner of the place may make such additions or improvements in the place as he may think fit and thereafter, he may make an application to the Government for the issue to him of a fresh certificate of approval under rule 4 or, as the case may be, for the revival of the certificate which was suspended under sub-rule (1).

(3)
The provisions of rule 4 shall, as far as may, apply to an application for the issue of a fresh certificate of approval in relation to a place, or as the case may be, for the revival of a suspended certificate as they apply to an application for issue of a certificate of approval under that rule.

(4)

In the event of suspension of certificate, of approval, the place shall not be deemed to be an approved place for the purposes of termination of pregnancy from the date of communication of the order of suspension.

7.

Review .-(1) The owner of a place who is aggrieved by an order made under rule 6, may make an application for review of the order to the Government within a period of sixty days from the date of such order.

(2)

The Government may, after giving the owner an opportunity of being heard, confirm, modify or reverse the order.

8.

Form of consent .-The consent referred to in sub-section (4) of section 3 shall be given in Form C.

9.

Repeal and saving .-The Medical Termination of Pregnancy Rules, 1972, are hereby repealed except as respects things done or omitted to be done before such repeal.

FORM A

[See sub-rule (2) of rule 4]

Form Of Application For Tire Approval Of A Place Under Clause (B) Of Section 4

1. Name of the place (in capital letters).....

2. Address in full

3. Non-Governmental/Private Nursing ho me/Other Institutions'

4. State, if the following facilities are available at the place.....

(i)

An operation table and instruments for performing abdominal or gynecological surgery.

(ii)

Drugs and parenteral fluid in sufficient supply of emergency cases.

(iii)

Anaesthetic equipment, resuscitation equipment and sterilization equipment.

.....

Signature of the owner of the place.

Place.....

Date.....

FORM B

(See sub rule(6) of rule 4]

Certificate Of Approval

The place described below is hereby approved for the purpose of the Medical Termination of Pregnancy Act, 1971 (34 of 1971

).

Name of the owner

Name of the Place

Address and Other Descriptions.

Place.....

Date.....

to the Government of the

FORM C

(See rule 8)

I.....daughter/ wife of aged about..... years
of(her state the
permanent address)..... at present residing at..... do hereby give my
consent of the termination of my pregnancy at.....

.....

(State of name of a place where the pregnancy is to be terminated).

.....

Signature.

Place.....

Date.....

(To be filled by guardian where the woman is lunatic or minor)

I..... son/daughter/wife of..... aged
about..... of.....at present residing
at.....(permanent address)..... do hereby give my consent to
the termination of the pregnancy of my ward..... who is a
minor/ lunatic at.....

(place of termination of pregnancy).

Place.....

Date.....

.....

Signature

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